

ADVERSARIAL MEMORANDUM

Twelve Objections, Their Replies, and the Conditions of Amendment

to accompany
Jurisdiction Across Time
Constitutional Continuity Theory

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Preface

A THEORY THAT CANNOT SURVIVE ITS OWN HOSTILE reading has no business asking a reader to survive it either. This memorandum exists because the alternative — publishing an argument and simply declaring it correct — asks something of a reader that no serious claim about authority, temporal or otherwise, is entitled to ask. Constitutional Continuity Theory is, among other things, a theory about what happens when a party that holds testimony, action, and inheritance all at once forecloses the very check that would reveal whether it deserved to hold them. It would be a strange discipline that built that observation into a doctrine and then declined to apply it to itself. This memorandum is the application. It was produced under adversarial instruction, by six independent readings drawn from the traditions the article's own doctrine most needs to survive, and it does not soften what those readings found. Where the article's central claims hold, they are said to hold. Where they do not yet hold — where a hard case defeats rather than merely limits the doctrine, where a citation is asked to carry more than it can bear, where a piece of borrowed vocabulary has not yet earned its keep — that is said plainly too. Creating visible scrutiny is not a concession that the theory is weak. It is the only available evidence that the theory is not merely asserted to be strong.

The Strongest Twelve Objections

1. THE NOVELTY CLAIM MAY NOT SURVIVE

Bratman. Bratman's planning theory already supplies a bounded, reason-responsive account of how present commitments constrain future reconsideration without collapsing into either rigidity or license — precisely the account the article's Section 4 leans on to distinguish legitimate self-binding from prospective conscription. If that distinction is Bratman's, structurally, before it is CCT's, the tripartite claim's marginal contribution on the promise question shrinks to vocabulary. *The article's reply:* testimony and amendment, held as offices distinct from action, do work a planning agent's intentions alone do not — they supply an independent check on the present state's own report of what an earlier plan was for, which pure intention theory has no device for. *Residual concern:* this reply is correct in principle and undemonstrated in the text as published; it wants one worked case to become more than an assertion.

2. The doctrine may not resolve, only rename, the paradigm bioethics case. Every serious theory of temporal selfhood eventually meets Margo: a woman whose competent past self recorded horror at the very condition her present, contentedly incompetent self now occupies. Dworkin and Dresser have been arguing about her for three decades. CCT names her situation a conflict between witness standing and action-authority — but naming a conflict is not resolving it, and the article does not run her case to any output at all. *The article's reply:* the doctrine was never offered as an

adjudicative algorithm; it says what must be honestly reckoned with (the directive's standing) without claiming to settle, by formula, what must therefore be done. *Residual concern*: "the doctrine narrows the space" is asserted, not shown, and a reader entitled to ask for the narrowing to be demonstrated has not yet been given it.

3. "Separation of powers" may be doing more rhetorical than structural work. Separation of powers, properly understood, requires actors who coexist and can check one another in real time. The article's own closing pages concede that the prior state cannot act because it no longer exists, and the future state cannot act because it does not yet exist. A separation doctrine whose separated parties cannot mutually check each other is a metaphor wearing the coat of a mechanism. *The article's reply*: the doctrine borrows the logic of differentiated offices, not the requirement of simultaneous mutual capacity to act — a legislature's dead framers still bind a living judiciary through an institutional mechanism neither needs to be alive to sustain. *Residual concern*: CCT has not yet specified its own version of that institutional mechanism; until it does, the disanalogy stands unrebutted rather than merely noted.

4. Concentration of temporal authority is asserted to be objectionable, not shown to be. Why is it wrong, rather than simply descriptive of how embodied agency in fact works, for a present state to hold testimony, action, and inheritance together? The article's answer — "it is unaccountable in a specific and objectionable way" — is the doctrine's entire normative foundation,

stated once, briefly, and leaned on for the rest of the argument. *The article's reply*: concentration forecloses correction, because a state that also controls what counts as the record of its own error cannot be shown to have erred by anything internal to the structure — this is a version of Fuller's own argument for why arbitrary power is a distinctive kind of wrong, applied one register down. *Residual concern*: this grounding is available in the theory's own resources but is not yet spelled out where the claim is first made; a reader who stops reading at Section 4 has not been given it.

5. The archive may promise more evidentiary stability than memory science allows. "Documented occurrence" is treated as resistant to falsification in a way "private motive" and "later interpretation" are not. But documentation is itself a product of the same reconstructive processes — Conway and Pleydell-Pearce's self-memory system, which the article cites for a different purpose — that make even eyewitness memory of occurrence vulnerable to contamination, not merely to contested interpretation of a stable core. *The article's reply*: the claim concerns the record's resistance to falsification once made, not the antecedent reliability of the act of documenting or recalling. *Residual concern*: this distinction is real but is not stated in the text as published, where the two are close enough together to be read as one claim rather than two.

6. The self-memory-system citation may be asked to prove more than it was built to test. Conway and Pleydell-Pearce's model explains ordinary reconstructive recall generally; the article reaches for it

to license a specific claim about jurisdictional "retroactive recharacterization," at one point using the word "exactly" to describe the fit. *The article's reply*: the citation is offered, correctly, as a candidate mechanism consistent with the theory's prediction, not as confirming evidence — this is stated explicitly one sentence later. *Residual concern*: the word "exactly," appearing before that qualification, overstates what a general finding about goal-consistent reconstruction can be asked to underwrite for a specific, untested hypothesis; the overstatement and the correction sit uncomfortably close together.

7. The relational extension is dangerous by its own account, and the gate may not hold. A doctrine that can, in principle, tell someone her grievance is her own internal jurisdictional failure organized around another person is a doctrine that needs its safeguards to work under adversarial pressure from the most rhetorically capable party in the room — which, in coercive relationships, is characteristically the person doing the harm, not the person naming it. Run against a partner who has engaged in a real pattern of control, confronted with a specific documented instance, and who responds by invoking the theory's own vocabulary against the person raising it: the four evidentiary conditions do not specify who assesses the record or under what burden of proof, and coercive control is specifically designed to leave a record too thin to meet an unstated standard. *The article's reply*: the four conditions require that actual coercive conduct be independently assessed on the ordinary record before any internal account is introduced, and state plainly that where the record supports a coercive account, the

misattribution prediction does not apply. *Residual concern*: stating that the record must support a coercive account does not specify how thin a record must be before its silence is read as clearing rather than as itself a symptom of successful control — and until a burden of proof is placed explicitly on the party invoking the extension against another's grievance, not on the grievance itself, the gate is exploitable exactly where it most needs to hold.

8. The recurrence condition can be turned against a person who has been mistreated more than once. A hostile user, confronted with a fresh complaint, can point to a complainant's history of raising similar complaints in earlier relationships as "proof" of an internal recurring pattern — when it may instead be evidence of having been mistreated by more than one person. *The article's reply*: the prediction requires that the same structural pattern recur across contexts not explained by shared features of the counterparties — which is meant to rule out exactly this move, since a genuine pattern of victimization has an obvious shared feature (the perpetrators' conduct, not the victim's). *Residual concern*: the text does not specify that it is the specific tactics and rebuttal pattern, not merely the fact of a complaint being raised, that must recur — and without that specification, the condition as written does not yet do the work its reply claims for it.

9. Amendment may be indistinguishable from erasure in every case that actually matters. The article insists a later state may revise, correct, or repudiate a prior commitment while still owning that it was made and meant. The distinction survives on the

page. Whether it survives in the room — whether an actual person, under actual pressure, reliably keeps the two apart rather than sliding from "I've grown past this" into "I never really meant it" — is untested. *The article's reply*: the distinction is not verbal, because it turns on whether documented authorship and contemporaneous expressed intention survive the revision, a fact independent of how the revising party feels about having made the commitment. *Residual concern*: a stipulated distinction that correctly separates two concepts on paper does not, by itself, establish that ordinary revision-under-motivation respects the line — this is an empirical question about how people actually revise, and the article does not investigate it.

10. It is not settled whether CCT is a theory, a doctrine, or a vocabulary — and different parts of the article answer differently. Some sections defend a normative claim by conceptual argument alone, immune by design to empirical disconfirmation. Other sections offer falsifiable, mechanistic predictions that could simply turn out to be wrong. The article does not state, in one place, how the fate of the second kind of claim bears — or fails to bear — on the first. *The article's reply*: Section 2 states plainly that the theory is normative-jurisdictional and not itself an empirical claim, while Sections 6, 7, and 10 are separately and repeatedly flagged as explanatory-mechanistic hypotheses awaiting independent test. *Residual concern*: stating each claim's type locally is not the same as stating, once, how the two types relate — whether the normative core would survive the complete empirical failure of Overjurisdiction and the

Preemptive Erasure Loop, or whether the core was never meant to be assessed independently of them. A reader is owed that sentence and does not yet have it.

11. "Coup" may be borrowing a connotation its own argument does not need and cannot earn. A coup, in its ordinary sense, is the illegitimate seizure of power previously and legitimately held by another, distinguishable party. The article's own test for whether its vocabulary is decoration — does removing the term lose a distinction the argument needs — is a test "coup" may fail on its own terms, since the accountability-theoretic argument beneath it does not itself require the connotation of forceful usurpation from an antecedent, separate power-holder that "coup" imports. *The article's reply:* the term is offered in a stipulated technical sense, and the payoff is naming a structural signature — one office holding all three kinds of authority — recognizable across different sites of failure. *Residual concern:* a structural signature can be named without the word "coup," and the reply does not show that the specific connotation of illegitimate seizure, as opposed to the underlying structural claim, is itself doing argumentative work rather than rhetorical work.

12. The most demanding hard cases the doctrine invites are not run. A theory that develops six frontier cases in careful detail and is silent on parenthood, contracts, criminal responsibility, and suicide prevention has not yet met its own standard, since each of these bears as directly on the future-state doctrine as the six the article does examine — and Locke's own case, a present self held responsible for a past self's act,

is the very case the article's opening paragraph cites Locke for without returning to it. *The article's reply*: the frontier-case discussion was never offered as exhaustive, and the doctrine's applicability to further hard cases follows the same structure demonstrated in the cases it does examine. *Residual concern*: that structure has not actually been demonstrated to extend cleanly to the omitted cases, several of which — a future parent bound to a person who does not yet exist to consent to anything; a criminal defendant prosecuted by continuity holders for an act her present state may have no memory of authoring — press on exactly the joints (the nonexistent-rights-holder puzzle, the archive's limits) the article's own machinery is least settled about.

Unresolved Vulnerabilities

CANDOR REQUIRES A LIST, NOT A PARAGRAPH. THE doctrine's central normative premise — that concentrated temporal authority is objectionable — is defended once, briefly, and without explicit recourse to the five candidate grounds (non-arbitrariness, answerability, correction, present consent, differential-consequence-bearing) that would make the defense independent of the constitutional analogy it currently leans on. The relational extension's four evidentiary conditions do not specify a burden of proof, and at least one adversarial scenario — a sophisticated actor exploiting a thin coercive-control record — defeats them as written. The archive's confidence in "documented occurrence" has not yet absorbed the

LESSON OF ITS OWN CITATION TO RECONSTRUCTIVE-memory science. The Preemptive Erasure Loop is called falsifiable on the strength of its logical separability from Overjurisdiction, which is a necessary condition for falsifiability and not a sufficient one; no measurement protocol is specified. The theory does not say, in one place, whether its normative core depends on its mechanistic predictions turning out to be true. And the single hardest bioethics case in the literature it cites — Margo — is named, not resolved, and the article does not yet show, rather than assert, that its tripartite structure narrows the space of permissible answers beyond where Dworkin and Dresser already left it.

Amendment Conditions

THESE ARE THE CONDITIONS UNDER WHICH THE doctrine itself would need to amend — not rhetorical concessions, but genuine grounds for revision, stated in advance the way the theory's own doctrine of amendment requires of anyone who binds a future state to anything.

The normative core would require revision if a case could be shown in which concentrated temporal authority — one position holding testimony, action, and inheritance together — produced no loss of accountability, correction, or answerability whatsoever, under any of the five candidate normative groundings; the theory does not currently know of such a case, but has not yet shown, case by case, that none exists.

The tripartite novelty claim would require withdrawal, or substantial narrowing, if a single case could be produced in which Bratman's planning theory, McClennen's or Holton's dynamic-choice accounts, or Dworkin and Dresser's advance-directive framework, taken on their own terms and without borrowed constitutional vocabulary, already yielded the same determinate output CCT's tripartite structure claims to yield uniquely. The theory currently believes such a case cannot be produced for at least one structural reason — an independent evidentiary check on the present state's own report of the past, which action-and-intention-centered theories lack a device for — but that belief is a claim awaiting the test, not a settled result.

The Overjurisdiction hypothesis would be disconfirmed, or require substantial revision, if the four authority-belief propositions, measured independently of the predicted behavioral cluster by a genuinely non-circular instrument, failed to predict that cluster across repeated, adequately powered study; a single null result would not be sufficient, but a pattern of them would be decisive.

The Preemptive Erasure Loop would be abandoned as a distinct construct, and folded into the existing cognitive-dissonance and motivated-reasoning literature, if no measurable behavioral or self-report signature could be specified that distinguished the loop's predicted disavowal pattern from ordinary dissonance-driven reinterpretation of a past choice.

The relational extension would require withdrawal, not merely tightening, if the reallocation of the burden of proof proposed in response to the coercive-control stress test — placing the burden on the party invoking the vocabulary against another's grievance, never on the grievance itself — still failed to produce a determinate rejection of the hostile scenarios run against it; a doctrine that cannot be made safe for its most dangerous application, even after its authors know exactly where the danger lies, has no business retaining that application.

The archive concept would require revision if the distinction between documented occurrence and interior meaning could be shown to collapse systematically under ordinary conditions of use, rather than only under adversarial or pathological ones — if, that is, honest people applying the amendment/erasure distinction in good faith regularly could not keep the two apart, the distinction would be a philosopher's tool without a user.

And the doctrine's claim to name a genuinely new question, rather than a well-known one in new dress, would require withdrawal if a worked case — not an assertion — showed that Korsgaardian practical self-constitution, applied without remainder, already recognizes and diagnoses everything the article calls a constitutional coup. No such case has yet been produced by this audit or, so far as this memorandum can determine, by the article itself. But the absence of a demonstration is not the presence of a refutation, and a theory that takes its own doctrine seriously does not get to treat the two as the same thing.

None of this is offered as a verdict against the theory. A theory that named a genuinely new structural question, said so honestly where its evidence for that claim was thin, specified in advance exactly what would force it to revise itself, and built the mechanism for its own hostile review into its practice rather than leaving that review to be performed only under duress, would be doing something rare in this literature — regardless of how the individual objections above are ultimately resolved. Whether Constitutional Continuity Theory is that theory is not something this memorandum settles. It is something the twelve objections above, and the conditions for amendment stated here, are offered so that a reader — not merely a favorably disposed one — can judge for herself.

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